

107	Iorio vs. Certified HOA Management, Inc., 24-01421374	<i>Off-Calendar.</i>
108	Abitong vs. FCA US, LLC, 25-01458981	<i>Off-calendar. The Case Management Conference will proceed as scheduled.</i>
109	The People of the State of California vs. Super 8 Gas Corporation, 22-01255181	<u>Application for OSC re: Contempt</u> Plaintiff The People of the State of California (the "People") apply for the Court to set an Order to Show Cause requiring defendants Super 8 Gas Corporation and Saleh Omar to show cause as to why they should not be held in contempt of this Court's Order issued on August 21, 2025. "As a general rule, the elements of contempt include (1) a valid order, (2) knowledge of the order, (3) ability to comply with the order, and (4) willful failure to comply with the order. [Citations.]" (<i>In re Ivey</i> (2000) 85 Cal.App.4th 793, 798; <i>accord, Wanke, Indus., Commercial, Residential, Inc. v. Superior Court</i> (2012) 209 Cal.App.4th 1151, 1168 (<i>Wanke</i>).) The subject order assessed \$50,000 in penalties against Defendants Super 8 Gas and Saleh Omar ("Defendants"). Defendants were ordered to pay \$50,000 as follows: \$25,000 to Orange County District Attorney's Office and \$25,000 to Riverside County District Attorney's Office. Payment was to be made within 30 days of service of the order. (ROA 45.) The People filed their Application for OSC re: Contempt on 10/31/25. (ROA 49.) At the time, the People indicated that on 9/26/25, Defendants paid \$10,000 (\$5,000 to Riverside County and \$5,000 to Orange County). (ROA 49, Park Decl. ¶12.) On 1/28/26, the People filed a supplemental declaration in which it was indicated that additional \$5,000 payments were made to each of the counties in November 2025 and in January 2026 (ROA 52 ¶¶9-12.) On 4/6/26, in connection with their motion to seal, the People filed the declaration of attorney Susan Park, who indicates that "[a]s of March 11, 2026, the defendants have fully paid \$50,000

		to the Orange County District Attorney's Office and Riverside District Attorney's Office." (ROA 82, Park Decl. ¶ 16.) The People have also submitted a copy of a 9/26/25 email from attorneys for Defendants in which it was stated that Defendants were not in a financial position to pay the full \$50,000 at that time, and instead proposed a payment plan. (ROA 91, Exh. 1-3.) The People have submitted no evidence that Defendants were able to comply with the Court's order by paying the \$50,000 as a lump sum, within the timeline ordered by the Court. To the contrary, it appears that Defendants made a good faith attempt to comply with the Order by submitting payments over time. Thus, it does not appear that any failure to comply was willful. Further, as Defendants have now complied with the Court's order by paying the full \$50,000, there is nothing to be accomplished by way of contempt proceedings. In addition to the above, as the Court previously expressed in its order continuing the initial hearing on this application, the Court has concerns over when Defendants received notice of its order. For all of these reasons, the motion is DENIED. <u>Motion to Seal</u> The People's unopposed Motion to Seal is GRANTED in part and DENIED in part pursuant to California Rules of Court Rules 2.550 and 2.551. The People's motion is DENIED as to Exhibits 1, 1-1, 1-2 and 1-3. (ROAs 85, 87, 89, 91.) These documents are communications between counsel for the parties, which include some settlement discussions. The People cite to Evidence Code §1152 as support for the proposition that these materials should be sealed. However, section 1152 merely states that settlement discussions are inadmissible to prove liability. This does not mean that there is an overriding interest in keeping settlement
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		communications between opposing counsel out of the public record. The motion is GRANTED as to Exhibits 2 and 3. These documents contain private financial information of Defendants, in the form of financial account numbers. As to these documents, the Court finds the existence of an overriding interest which overcomes the right of public access and supports sealing. A substantial probability exists that the overriding interest will be prejudiced if the record is not sealed. Accordingly, the unredacted versions of Exhibits 2 and 3 (ROAs 93 and 95) are ordered sealed. <i>Plaintiff to give notice.</i>
110	Ally Bank vs. Chavez, 25-01515267	<i>Off-calendar.</i>
111	Hernandez vs. ATI Restoration, 25-01507578	Defendants ATI Restoration, LLC and Gary Moore's motion to compel arbitration and stay action is GRANTED. Defendants request for judicial notice is GRANTED. The Court takes judicial notice of: (1) ATI's Limited Liability Company Articles of Organization – Conversion, filed with the California Secretary of State on July 28, 2020, reflecting the conversion of American Technologies Inc. into ATI Restoration, LLC (Exh. 1); and ATI's Certificate of Conversion, filed with the California Secretary of State on July 29, 2020, reflecting ATI's conversion into a Delaware limited liability company (Exh. 2). (Evid. Code, § 452, subd. (c); Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, fn. 3 [taking judicial notice of statements of information filed with the California Secretary of State].) Defendants' evidentiary objections Nos. 1 through 4 to the Declaration of Victor Hernandez are OVERRULED. Defendants ATI Restoration, LLC ("ATI") and Gary Moore (collectively "Defendants") move for order compelling Plaintiff to submit his